

STATE OF NEW YORK

1455--B

2025-2026 Regular Sessions

IN SENATE

January 10, 2025

Introduced by Sens. KAVANAGH, FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Codes in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to requiring the division of criminal justice services to study the technological viability of personalized firearms

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "safer
2 weapons, safer homes act".

3 § 2. Section 835 of the executive law is amended by adding two new
4 subdivisions 12 and 13 to read as follows:

5 12. "Personalized firearm" means a pistol or revolver that incorpo-
6 rates within its design a permanent programmable feature as part of its
7 manufacture that cannot be deactivated and renders it reasonably resist-
8 ant to being fired except when activated by the lawful owner or other
9 user authorized by the lawful owner.

10 13. "Authorized user" means the owner of a personalized firearm or a
11 person to whom such owner has given consent to use the personalized
12 firearm.

13 § 3. The executive law is amended by adding a new section 838-c to
14 read as follows:

15 § 838-c. Personalized firearms; study of technological viability. 1.
16 As used in this section, the terms "personalized firearm" and "author-
17 ized user" shall have the same meanings as defined in subdivisions

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 twelve and thirteen, respectively, of section eight hundred thirty-five
2 of this article.

3 2. The division or a designee shall within two years of the effective
4 date of this section engage in and complete a study that describes
5 performance standards, qualifying criteria, and testing protocols neces-
6 sary to determine the technological viability of personalized firearms
7 and identifies by make and model firearms that qualify as personalized
8 firearms.

9 3. The division shall report the results of the study completed pursu-
10 ant to subdivision two of this section to the governor, the temporary
11 president and minority leader of the senate, and the speaker and minori-
12 ty leader of the assembly.

13 § 4. This act shall take effect immediately.